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CASE #	CASE NAME	HEARING NAME
CVRI2304714	DELEO 28, LLC VS KB HOME COASTAL, INC.	DEMURRER ON 2ND AMENDED COMPLAINT FOR OTHER REAL PROPERTY (OVER \$25,000) OF DELEO 28, LLC BY PAINTED HILLS COMMUNITY ASSOCIATION

Tentative Ruling:

OVERRULE the demurrer to the Second Amended Complaint ("SAC"). Defendant Painted Hills Community Association ("Painted Hills") to file an Answer within 10 days of this order.

Plaintiff alleges in the SAC that the improvements constructed by KB Home Coastal, Inc. ("KB") have caused an unpermitted concentration of drainage flows, including untreated urban runoff, onto and across the Deleo Property, causing downstream property damage to the Deleo Property. Painted Hills now demurs to the first cause of action for breach of easement in the SAC for uncertainty and to the fourth cause of action for negligence, as barred by the three-year statute of limitation for negligence actions under CCP § 338.

Here, the SAC alleges that the Original Easement granted KB, and the other property owners, a nonexclusive perpetual easement appurtenant in, to, over and across the portion of the Deleo Property "for the purpose of construction, use and maintenance of manufactured slopes, landscaping and related improvements." "The improvements constructed pursuant to the easements were to be maintained by the party installing such improvement, until such maintenance is accepted by a public agency, or a homeowners association, after which acceptance the constructing Party shall be relieved of any further maintenance responsibility for the improvements so accepted."(SAC Para.16) It is alleged that Painted Hills and co-Defendant Canyon Oaks HOA are successors-in-interest to KB as to their rights and obligations under the Original Easement and the First Amendment to the easement. (SAC Para.30) These allegations are sufficient. Here, although the facts are not so clear as to the manner in which the maintenance obligations over the drainage facilities were transferred to Painted Hills, it can be reasonably inferred that once the individual lots in the subdivision were sold off to homeowners, the easement rights and obligations were transferred to the new owners whose interests were represented by the homeowner's association.

The demurrer is overruled as to the negligence cause of action because the drainage flow and urban runoff damages constitute a continuing nuisance. The continuance of the nuisance on the Deleo Property gives the Deleos the right to bring successive actions against Defendants until the nuisance is abated. (*Tracy v. Ferrera* (1956) 144 Cal.App.2d 827, 829.) The action is not time barred by CCP § 338.